

Dhirendra Singh v. State of U.P. and Another

High Court of Judicature at Allahabad · Division Bench · 10 January 2018 · Writ-C No. 1225 of 2018 · **Writ disposed; EE to decide pending Clause 6.5 bill objection within four weeks.**

HEADNOTE

Consumer sought mandamus to compel the Executive Engineer, Poorvanchal Vidyut Vitran Nigam Ltd., Fatehpur, to decide a Clause 6.5 bill-correctness objection dated 13.01.2017. The Division Bench disposed of the writ directing that if the application remained undecided, the authority shall decide it by a reasoned and speaking order in accordance with law within four weeks of production of a certified copy.

FACTUAL SUMMARY

Dhirendra Singh, a consumer of Poorvanchal Vidyut Vitran Nigam Ltd. in Fatehpur, filed an application dated 13 January 2017 before the Executive Engineer, Electricity Distribution Division, Fatehpur, under Clause 6.5 of the U.P. Electricity Supply Code, 2005, objecting to the correctness of a bill issued to him. When that application remained undecided, he approached the Allahabad High Court seeking a mandamus commanding the Executive Engineer to decide the Clause 6.5 objection.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

pending bill-correctness objection before Executive Engineer

HOLDING

Where a consumer has filed an application under Clause 6.5 of the Supply Code objecting to the correctness of a bill and that application remains undecided, the writ court may dispose of a mandamus petition by directing the Executive Engineer to decide the application in accordance with law by a reasoned and speaking order within a fixed time, without examining the bill on merits. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE ELECTRICITY BILL AND THE CLAUSE 6.5 OBJECTION ON MERITS

The Court only directed the Executive Engineer to decide the pending application if still undecided; it did not examine the bill. ¶ 1